सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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**F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 7** **Date: 27.07.2021**

**MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 25.06.2021**

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 25.06.2021 at 03.30 pm which was chaired by Shri Vinayak Azaad, Commissioner of Customs (Import) & by Shri S. Anantha Krishnan, Commissioner of Customs (Export). In view of the government advisory regarding "social distancing" and preference for eschewing avoidable movements to combat the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives of various stakeholders participated in the meeting:

| **Name & designation** | | **Organization** |
|---|---|---|
| Shri M. K. Sarangi, Addl. Commissioner (Import) | | Customs, ACC, Mumbai |
| Shri Vishal M. Sanap, Addl. Commissioner (Import) | | Customs, ACC, Mumbai |
| Shri Amit Kumar Sharma, Jt. Commissioner (General) | | Customs, ACC, Mumbai |
| Shri Sudhakar Pandey, Jt. Commissioner (Export) | | Customs, ACC, Mumbai |
| Sh. Sukant Chaudhary, Deputy Director | | FSSAI, ACC, Mumbai |
| Ms. Manita Churi, Technical Officer | | Asst. Drug Controller Office, Mumbai |
| **Name of attendees of stakeholders** | | **Organization** |
| Shri Dushyant Mulani, Shri Kaushal Thakkar, Shri Nirav Thakkar, Shri Ketan Desai | | BCBA |
| Shri Vineet Agarwal | | ACAAI |
| Shri Manoj Singh, Sh. Ashok | | MIAL |
| Sh. Kamlesh C. Sawant, Sh. Errol D'souza | | AIATSL |
| Shri Mark Fernandes | | MSF Bombay |
| Shri Jayesh Parab | | MACCIA |
| Shri Newton Fernandes | | All Nippon Airlines |
| Shri Harish Zade | | Lufthansa Cargo |
| Shri Zubin | | Cathay Pacific |
| **Other attendees** | | |
| Shri Sameer Vichare | Smt. Vaishali Kulkarni | Shri Lynn Bothello |
| Shri Mangesh M. | Kiran Rambhia | Shri Amit Kumar Meena |

At the outset, Commissioner of Customs (Import/Export) welcomed the members of Trade, Customs Broker Associations, Representatives of Airlines/Custodian, and other stakeholders present for the virtual meeting.

Following agenda points were taken up:

## A. OPEN POINTS FROM LAST PTFC MEETING HELD ON 28.05.2021

**1.** In case of multiple queries in a single BE, importers/CBs are unable to see the query status of early query and reply given thereof since past 15 days. Earlier, this was visible since inception of EDI. BCBA requested to represent with DG systems to restore this query module for linking all the queries. **(Import)**

**Additional Commissioner (EDI) stated that they have sent the reminder to the DG systems regarding the same and is following up for the reply from them. Sh. Dushyant Mulani of BCBA appreciated the efforts made by ADC, EDI to solve this query. He further added that BCBA will also follow up the same with DG systems and hopefully the matter will be resolved.**

**(Point Closed)**

**2.** Sh. R.G. Meena, officer from Regional Plant Quarantine Station, informed that the timeline for NOC depends on the type of commodity as for the fresh goods: 48 hours, plants: 1-2 days, 3 days (with fumigation), etc. To this, Commissioner (I) directed ADC(I) to explore the possibility of providing a link on ACC website regarding provisions, Do's & Don'ts and rules pertaining to PGAs as a facilitation measure for the trade.

**ADC, Import informed the members that a link has been provided under Information tab of ACC website wherein the FAQs related to Plant Quarantine, Animal Quarantine and FSSAI have been uploaded for the benefit of the trade. Commissioner (Import) appreciated the efforts made by ADC, Import for providing the link for the trade and directed to compile the FAQs of other PGAs (Asst. Drug Controller & WCCB) as well for completion of the task.**

**(Point Open)**
**Action By: Asst. Drug Controller, WCCB & ADC, Import**

**3. Online payment of fees for IGST refund (Export)**

Exporters are required to pay Rs. 1000/- towards completion of IGST refund formalities in terms of CBIC Circular No 05/2021 – Customs dated 17.2.2021. We request that an online payment of such dues may kindly be introduced.

**JC, Export informed the members that above suggestion was discussed with DC, IGST, New Customs House where the said procedure has already been followed. After discussion it was found out that this facility was only made to a specific case and providing such facility to all the exporters will create hassles and is not feasible. It is therefore decided to have an online payment system is ICES itself. In this regard, a letter has been written to DG systems for providing online payment facility in ICES itself.**

**(Point Closed)**

4. Below is another point which was recently raised in the PTFC meeting at JNPT. We would like to raise this point at this forum as well.

*EDI Shipping Bills from Customs to the airlines.*

a) A provision should be made to share Electronics PDF Shipping bill data with the airlines. There is a good chance that this will reduce the EGM errors and expedite IGST refund process as well.
b) This will also confirm to the airline that all shipping bills under one airway bill has been authorized by customs to uplift for export.
c) Manual print out of electronic PDF shipping bill documents should not be allowed in normal cases when the customs online system is working perfectly.

**Commissioner (Export) welcomed the suggestion made by the trade and informed the members that this move will solve the EGM errors made by the airlines. He further informed that the same has been written to the DG systems. BCBA thanked Commissioner (Export) for the prompt move and also informed that they alongwith ACAAI will parallely take up the matter with DG systems for its early resolution.**

**(Point Closed)**

## Fresh Agenda Points:

***Points raised by BCBA:***

1) **Payment of Fees as per Board Circular 05/2021 towards IGST Refund thru Alternate Mechanism (Export)**

Feedback received from Exporters, that they are being asked to pay ₹1,000 even for application made prior to the said Circular, where the SB are not processed.

In view of the above we request the department not to recover ₹1,000 if the exporter is able to produce the copy of the application submitted prior to the board Circular, as the delay is not from their end.

**Commissioner (Export) prima facie accepted the proposal made by the trade. However, he stated that the matter will be taken up with other Commissionerates also for inviting the comments from them regarding the above said proposal. After analysing the same, the matter will be dealt on merits.**

**(Point Open)**
**Action By: JC, Export**

2) **Online working of Bond Dept. to maintain social distancing (General)**

We request that the manual processes in Bond Dept, Amendment etc, should be made online to maintain social distancing.

**Joint Commissioner (General) requested BCBA to come up with detailed proposal in this regard so that the matter will be dealt on merits.**

**(Point Open)**
**Action By: BCBA & JC, General**

3) **Shifting of TSK counter near ACC Import Appraising group (General)**

In view of the monsoon season, we kindly request that TSK counter, which needs to frequented very regularly by CB Staff, should be shifted near Import Appraising group. This request in on humanitarian ground due to monsoon.

**Commissioner (Import) directed ADC, Import to get in touch with JC, General in this regard and get the query resolved as soon as possible.**

**(Point Open)**
**Action By: ADC, Import & JC, General**

4) **Recovery of amounts and refunds from MIAL (MIAL)**

Members have represented to BCBA regarding delay in refund of charges from MIAL, which is on account of various factors such as Excess payment, TDS, Closure of PD Account etc.

We request that such charges should be made available in stipulated time limit of 15 days.

**Sh. Manoj Singh of MIAL informed the members that the above said refunds get processed as soon as the application is made for the same to MIAL's office. He further requested BCBA to give the list of pending applications, if any, so that the same may be processed on merits. BCBA agreed with the comments made by MIAL and informed that the said list will be provided soon.**

**(Point Closed)**

5) **Upfront Waiver by MIAL in view of system breakdown (MIAL)**

During instances of system breakdown, MIAL should upfront give waiver of demurrage charges and should not resort to case to case inspection.

**Sh. Manoj Singh of MIAL rejected the proposal made by BCBA saying that this has financial implications and needs to be checked properly. Hence upfront waiver is not possible. He further assured the trade that waivers will be done but only after proper scrutiny.**

**(Point Closed)**

6) **Effective monitoring system required on Truck Dock Areas by MIAL (MIAL)**

Effective monitoring system required on truck dock area by MIAL to ensure timely loading of import consignments and offloading of export

consignments required urgently. This will help to mitigate the delay of 4 – 6 hrs in entry of trucks post lunch.

**Sh. Manoj Singh of MIAL informed the members that this problem occurs because 90% of the trucks get entered at ACC, after lunch only. He suggested BCBA to bring in confidence the big importers/exporters to get their consignments cleared before lunch hours. Only then this problem will get resolved. BCBA agreed with the comments made by MIAL and submitted that they alongwith MIAL will get this issue resolved.**

**(Point Closed)**

7) **Any other point with permission of the chair.**

8) **Sh. Mark Fernandes sought the permission of the chair for raising two queries:**

i. He informed that customs is penalizing the trade for late filing of the bill of entry which are infact filed in advance. This happens due to query being raised by the customs officers & BE getting finalised after the inward date. This system glitch needs to be sorted. To this, BCBA informed that the matter has already been taken up with the DG systems and hopefully be sorted soon.

**(Point Closed)**

ii. He requested that an officer of WCCB be placed at ACC, Mumbai so that they need not to go to WCCB office at Belapur for NOC. To this, Commissioner (Import) informed that this point has already been discussed in early PTFC meetings with the concerned WCCB officer and needs to be followed up.

**(Point Open)**
**Action By: WCCB**

The meeting ended with thanks to the Chair.

This is issued with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

22/07/21.

O/c

**(M.K. Sarangi)**
**Addl. Commissioner of Customs (Import)**
**Air Cargo Complex, Mumbai**

**COPY TO:**

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting including BCBA & ACAAI. (via E-mail)
5. EDI Section- For uploading on ACC Website.
6. PGAs, ACC, Mumbai.
7. Office copy.

22/7/21

22/7/21
ADC (X)